

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2026PRTR059807: IN RE THE SCHMIDT IRREVOCABLE TRUST

07/15/2026 in Department J6

**Hearing on Petition for Instructions Per Probate Code 17200 et. seq. Regarding Order to
Chase Bank to Transfer Funds**

Probate Code section 17200.1. states:

All proceedings concerning the transfer of property of the trust shall be conducted pursuant to the provisions of Part 19 (commencing with Section 850) of Division 2.

Notice is required pursuant to Probate Code §851. Notice is insufficient. Mandatory Notice of Hearing on Petition to Determine Claim to Property (DE-115) not filed. Petitioner has not served Chase Bank in the manner required by Probate Code §851(a) – personal service.

Probate Code §851 (a) states:

At least 30 days prior to the day of the hearing, the petitioner shall cause notice of the hearing and a copy of the petition to be served in the manner provided in Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure on all of the following persons where applicable:

- (1) The personal representative, conservator, guardian, or trustee as appropriate.
- (2) Each person claiming an interest in, or having title to or possession of, the property.

Petitioner has attached a certification of trust, a copy of the entire trust, including Schedule A, is required for the court to rule on this petition.

Petitioner has failed provide proof the settlors owned the bank account as of the date the trust was executed (such as a copy of bank statement from prior to execution of trust), failed to provide facts establishing venue for the trust in Ventura County and failed to attach a complete copy of the Trust, including Schedule A of the Trust.

This was heard on 04/22/26. There were no appearances by any party.

The court continued the hearing to 07/15/26.

Nothing has been filed since prior to the 04/22/26 hearing.

If there are no appearances, the court intends to dismiss this matter without prejudice.

If the petitioner appears the court intends to continue to hearing to 09/17/26 at 9:00 a.m. for filing of an amended petition and statutorily sufficient service of the Notice of Hearing on Petition to Determine Claim to Property (DE-115).